

23CHCV03727 23CHCV03727

County: los-angeles

Division: Civil Law and Motion

Department: 730

Hearing date: 2026-06-23

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Case Number: 23CHCV03727 Hearing Date: June 23, 2026 Dept: 730

Superior Court of

California

County of Los Angeles

Department

730

20NINETEAM,

LLC, individually and derivatively on behalf of MOON POOL, LLC,

Plaintiff,

vs.

DUSTIN

WOLFF; STEPHANIE WOLFF; and DOES 1 through 20, inclusive,

Defendants,

-and-

MOON

POOL, LLC, a California Limited Liability Company,

Nominal Defendant.

Consolidated

Case No.:

23CHCV03727

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June 23,

2026

[TENTATIVE]

ORDER RE: ROPERS MAJESKI, PC'S MOTION

TO BE RELIEVED AS COUNSEL OF RECORD FOR DEFENDANT DUSTIN WOLFF.

The

hearing on the Motion to be Relieved as Counsel, filed by Stephen J. Erigero

and Ropers Majeski, PC, scheduled for June 23, 2026 at 8:30 a.m. is CONTINUED

TO _____ in Department 730 of the Stanley Mosk Courthouse.

Counsel

is ordered to personally serve the moving papers on Defendant Dustin Wolff and

file proof of service.

Moving

party is to give notice.

I. BACKGROUND

This is a derivative shareholder action arising from wrongful distributions from a limited liability company. (Compl., ¶ 21.) On December 5, 2023, Plaintiff filed its complaint against defendants Dustin Wolff, Stephanie Wolff, and DOEs 1 through 20, inclusive, and nominal defendant Moon Pool, LLC.

The complaint asserts five causes of action for: (1) breach of fiduciary duty, (2) conversion, (3) accounting, (4) constructive trust, and (5) breach of covenant of good faith and fair dealing.

The complaint alleges as follows:

Plaintiff 20Nineteam, LLC (Plaintiff) holds a six percent ownership interest in Moon Pool, LLC. (Compl., ¶ 3.) Defendants Dustin Wolff (Dustin) and Stephanie Wolff (Stephanie) each owns a 20.8% interest in Moon Pool. (Compl., ¶ 4-5.) Dustin and Stephanie have been the sole managers of Moon Pool since July of 2022. (Compl., ¶ 7.) Between June 2020 and June 2022, Moon Pool made distributions totaling \$2,520,000, and from July 2022 and November 2023 made at least \$1,120,000 in ownership distributions to separate entities controlled or owned by Dustin and Stephanie, without making pro rata distributions to all members, including Plaintiff, in violation of the operating agreement. (Compl., ¶ 20-21.) Dustin and Stephanie's conduct has

jeopardized Moon Pool's ability to conduct business and pay debts and

distributions to members when due. (Compl., ¶ 23.)

On March 2, 2026, Ropers Majeski, PC (Movant), counsel for

Dustin, filed the present motion to be relieved as counsel. No opposition has

been filed.

On April 21, 2026, the matter was called for hearing and

continued to April 22, 2026 due to Movant's non-appearance. The Court's

tentative ruling to deny the motion for lack of proof of service was not

adopted. (Minute Order dated April 21, 2026.)

On April 22, 2026, the present motion again came before the

court in Department 78 and was heard by Honorable Judge Tiana Murillo. The

Court continued the hearing to May 29, 2026 due to deficiencies in the moving

papers, and ordered Movants to personally serve the motion papers on Dustin and

provide proof of personal service. (Minute Order dated April 22, 2026; Notice

of Ruling dated April 23, 2026.)

On May 21, 2026, the Court continued the hearing to June 23,

2026.

II. LEGAL

STANDARD

The Court

has discretion to permit an attorney to withdraw from representation, and such a motion should be granted if there is no undue prejudice to the client. (Ramirez v. Sturdevant (1994) 21 Cal.App.4th 904, 915.)

California

Rules of Court, rule 3.1362 prescribes the following requirements of a movant seeking to be relieved as counsel: (1) The notice of motion and motion must be directed to the client using form MC-051 ("Notice of Motion and Motion to Be Relieved as Counsel-Civil"); (2) The motion must be accompanied by a declaration using form MC-052 ("Declaration in Support of Attorney's Motion to Be Relieved as Counsel-Civil") and "must state in general terms and without compromising the confidentiality of the attorney-client relationship why a motion under Code of Civil Procedure section 284(2) is brought instead of filing a consent under Code of Civil Procedure section 284(1)."; (3) A proposed order must be lodged with the court along with the moving papers and must use form MC-053 ("Order Granting Attorney's Motion to Be Relieved as Counsel-Civil") and "must specify all hearing dates scheduled in the action or proceeding, including the date of trial, if known. If no hearing date is presently scheduled, the court may set one and specify the date in the order."; (4) "The notice of motion and motion, the declaration, and the proposed order must be served on the client and on all other parties who have appeared in the

case" either by personal service, electronic service, or by mail.

(Cal.

Rules of Court, rule 3.1362 (a) – (e).)

"If the notice is served on the

client by mail under Code of Civil Procedure section 1013, it must be

accompanied by a declaration stating facts showing that either: (A) The service

address is the current residence or business address of the client; or (B) The

service address is the last known residence or business address of the client

and the attorney has been unable to locate a more current address after making

reasonable efforts to do so within 30 days before the filing of the motion to

be relieved.

(Id.

at 3.1362(d).)

"Current"

means that "the address was confirmed within 30 days before the filing of the

motion to be relieved." (Id.) "Merely demonstrating that the notice was

sent to the client's last known address and was not returned or no electronic

delivery failure message was received is not, by itself, sufficient to

demonstrate that the address is current." (Id.) "If the service is by

mail, Code of Civil Procedure section 1011, subd. (b) applies." (Id.)

III. DISCUSSION

Attorney

Stephen J. Erigero and Ropers Majeski, PC move to be relieved as counsel for

Defendant Dustin Wolff.

Here,

Movants have not satisfied the requirements of California Rules of Court, rule

3.1362. The MC-051 form filed by Movants on March 2, 2026 does not include any

proof of service as to Dustin. The MC-052 form filed states Movants personally

served Dustin with copies of the motion papers filed with the declaration and

that a copy of the proof of service will be filed with the court at least five

(5) days before the hearing. To date, Movants have failed to personally serve

Dustin and file proof of personal service as ordered by the Court on April 22,

2026. (See Cal. Rules of Court, rule 3.1362(d).). Movants also have not

provided proof of service by mail accompanied by a declaration as required by

California Rules of Court, rule 3.1362(d). Finally, the MC-053 form filed by

Movants is incomplete, as the findings and order sections are not filled out,

nor are future hearing dates. (Cal. Rules of Court, rule 3.1362(e).)

IV. CONCLUSION

Accordingly,

the Court CONTINUES the hearing on Counsel's Motion to be Relieved as Counsel.

Moving Party is ordered to give notice.

DATED:

June 23, 2026

Hon.

Alexander C.D. Giza

Judge of the Superior Court

PLEASE TAKE NOTICE:

- Parties are encouraged to meet and confer

after reading this tentative ruling to see if they can reach an agreement.

- If a party intends to submit on this

tentative ruling, the party must send an email to the court at with the Subject line "SUBMIT" followed by

the case number. The body of the email must include the hearing date and time,

counsel's contact information, and the identity of the party submitting.

- Unless all parties submit by email to this

tentative ruling, the parties should arrange to appear remotely (encouraged) or

in person for oral argument. You should assume that others may appear at the

hearing to argue.

- If the parties neither submit nor appear at

hearing, the Court may take the motion off calendar or adopt the tentative

ruling as the order of the Court. After the Court has issued a tentative

ruling, the Court may prohibit the withdrawal of the subject motion without

leave.